

Chapter 3 — Governance Bodies, Meetings, Deliberation, and Conflicts

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1. Purpose

Make collective governance competent, fair, attributable, and resistant to capture.

2. Scope

This chapter governs all consequential deliberation, all deliberation, all participants, binding meetings, conflicted decisions, consequential meetings, governance bodies, standing bodies. It defines institutional procedure and does not create constitutional, technical, operational, or security authority.

3. Authority and source requirements

Book I Articles VI, XI, XII and Decision 58; Book III review controls; Book VIII independence controls. Book I prevails. Final Books V and VI retain their operational and security/privacy/trust execution authorities; Book VII supplies institutional governance only.

4. Definitions and roles

Primary accountable roles: Body Chair, Governance Secretary, Decision Sponsor, Governance Recorder, Participant, Governance Chair, Governance Auditor. Authority means explicit bounded permission to decide; expertise and administrative access do not create it.

5. Normative controls

BDY-03-001 — Charter every body

Each governance body **MUST** have a written charter defining remit, authority source, membership, quorum, voting or decision rule, records, confidentiality, conflicts, appeal, and sunset.

- Applicability: governance bodies
- Responsible role: Body Chair
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Body Charter
- Severity: High
- Exception authority: Appointing Authority

BDY-03-002 — Verify quorum and authority

A meeting **MUST NOT** issue a binding decision without verified quorum and the required decision authority present or validly delegated.

- Applicability: binding meetings
- Responsible role: Governance Secretary
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Attendance and Authority Record
- Severity: Critical

- Exception authority: none

BDY-03-003 — Publish an evidence packet

Consequential agenda items **MUST** provide sources, proposal, alternatives, risks, evidence, affected parties, conflicts, and requested decision before deliberation.

- Applicability: consequential meetings
- Responsible role: Decision Sponsor
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Deliberation Packet
- Severity: High
- Exception authority: Body Chair

BDY-03-004 — Preserve dissent

Material dissent, uncertainty, minority impact, abstention, and unresolved evidence conflict **MUST** be recorded without retaliation or erasure.

- Applicability: all consequential deliberation
- Responsible role: Governance Recorder
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Dissent Record
- Severity: High
- Exception authority: none

BDY-03-005 — Disclose conflicts

Participants **MUST** disclose financial, relational, authorship, operational, reputational, and other material conflicts before access to restricted deliberation or decision.

- Applicability: all participants
- Responsible role: Participant
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Conflict Disclosure
- Severity: Critical
- Exception authority: Body Chair

BDY-03-006 — Recuse conflicted decision-makers

A materially conflicted person **MUST NOT** be the sole reviewer or approver and **MUST** recuse when impartial participation cannot be protected.

- Applicability: conflicted decisions
- Responsible role: Body Chair
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Recusal Record
- Severity: Critical

- Exception authority: Independent Ethics Reviewer

BDY-03-007 — Protect deliberative integrity

Governance **MUST** prevent coercion, retaliation, fabricated urgency, hidden evidence, off-record binding decisions, and selective minutes.

- Applicability: all deliberation
- Responsible role: Governance Chair
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Integrity Review
- Severity: Critical
- Exception authority: none

BDY-03-008 — Review body effectiveness

Each standing body **MUST** undergo periodic review of necessity, burden, decisions, calibration, diversity of evidence, conflicts, appeals, and sunset.

- Applicability: standing bodies
- Responsible role: Governance Auditor
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Body Effectiveness Review
- Severity: High
- Exception authority: Appointing Authority

6. Required procedure

The proposer **MUST** submit the classified proposal and evidence. The recorder **MUST** verify authority and conflicts. Required independent reviewers **MUST** issue findings. The controlling authority **MUST** decide exact scope and conditions. The recorder **MUST** publish authoritative status, retain evidence, schedule review and sunset, propagate effects, and preserve appeal rights.

7. Prohibited practices

Off-record decisions, authority inference, self-approval, hidden conflicts, silent precedent, selective evidence, indefinite emergency power, permanent exceptions, and retroactive record alteration are prohibited.

8. Evidence, publication, and retention

The package **MUST** preserve proposal, sources, authority, conflicts, evidence, alternatives, affected parties, deliberation, dissent, decision, conditions, effective state, propagation, review, sunset, appeal, supersession, classification, access, and retention.

9. Exceptions, failure consequences, and appeals

A failed Critical control blocks the decision or suspends its effect. A High failure requires correction or a valid expiring exception. Appeals use Chapter 12. No exception can waive Book I or manufacture Owner authority.

10. Security, privacy, reliability, and continuity

Governance records **MUST** be integrity-protected, least-privilege, purpose-bound, minimized, available for authorized review, recoverable, and resistant to compromised identities or record systems.

11. Verification and metrics

Verify authority paths, role separation, record completeness, evidence integrity, propagation, expiry, appeal, and source traceability. Measure reversals, calibration, escaped harms, exception age, burden, remedy, and decision latency.

12. Traceability, examples, review, and status

- Source basis: Book I Articles VI, XI, XII and Decision 58; Book III review controls; Book VIII independence controls.
- Book V reconciliation: `planning/BOOK\_V\_RECONCILIATION\_REGISTER.md`.
- Book VI reconciliation: `planning/BOOK\_VI\_RECONCILIATION\_REGISTER.md`.

Example: a committee recommends a risk response, but the record names the authorized Risk Owner as approver, preserves dissent, sets expiry, and triggers certification impact review.

Anti-pattern: an urgent meeting labels a policy “temporary,” grants indefinite power to its chair, omits conflicts, and treats silence as Owner approval.

Chapter review: PASS. Owner Review items: none created by this chapter. Completion status: CERTIFIED FINAL.